

Chitranjan Sheel v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 August 2014 · Criminal Misc. Writ Petition No. 13044 of 2014 · **FIR not quashed; CrPC 41-A directions; compounding left open.**

HEADNOTE

FIR under Section 138-B of the Indian Electricity Act cannot be quashed where it discloses a cognizable offence. If arrest is contemplated for an offence not carrying more than seven years, police must follow CrPC ss.41(1)(b) and 41-A. If the offence is compoundable, the accused may pursue the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Chitranjan Sheel petitioned the Allahabad High Court to quash FIR dated 10 July 2014, Case Crime No. 528 of 2014 at Police Station Neuria, District Pilibhit, registered under Section 138-B of the Indian Electricity Act. He had not been arrested. Counsel argued that even if charges were proved the sentence could not exceed seven years, so arrest should not be mechanical, and that the offence was compoundable. The AGA appeared for the State; counsel for the complainant was also heard.

HOLDING-UNITS

HOLDING-UNIT · EA2003::138

FIR under s.138 — quash refused where cognizable offence disclosed

HOLDING

The FIR under Section 138-B of the Indian Electricity Act discloses a cognizable offence, so it cannot be quashed. Arrest not having been made, if arrest is to be effectuated for an offence that will not entail sentence of more than seven years, police must comply with CrPC s.41(1)(b) read with s.41-A; breach may be complained of before the Magistrate. If the offence is compoundable, the petitioner may seek the remedy under the Electricity Supply Code, 2005. Petition disposed of. ¶ 1

FLAG FIR and order cite 'Section 138-B of the Indian Electricity Act'; EA 2003 has s.138, not 138-B.

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy FIR under Section 138-B of the Indian Electricity Act cannot be quashed where it discloses a cognizable offence. If arrest is contemplated for an offence not carrying more than seven years, police must follow CrPC ss.41(1)(b) and 41-A.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED S.138-B OFFENCE IS COMPOUNDABLE UNDER THE ELECTRICITY SUPPLY CODE, 2005

Court said only that if the offence is compoundable the petitioner may seek that Code remedy; it did not decide compounding. ¶ 1